Grams : ALINDIABAR, New Delhi
Fax : Off. (91) 011-23231767
E-mail : bci.india@hub.nic.in
Website : www.barcouncilofindia.org

Phones : Office : 23231647
Secy's : 23231648
Resi. : 22786209
22732923

बार कौंसिल ऑफ इन्डिया
BAR COUNCIL OF INDIA

21, राउज ऐवन्यू इन्सटीटूशनल एरिया
नई दिल्ली - 110 002
21, Rouse Avenue Institutional Area
New Delhi - 110 002

BCI:D: 628 /2008(LE/RTI) 24th May, 2008

UPC

Ms. S.K. Pal,
C1-172, IIT KHARGPUR
WEST BENGAL –721302

Ref: Your letter dated nil addressed to the Appellate Authority (Under RTI Act), Bar Council of India seeking further information on certain points relating to qualification and appointment of law teachers.

Madam.

I have been directed by the Chairman of the Executive Committee who is the Appellate Authority of the Bar Council of India under RTI Act to answer your queries as follows:

Query No.1: At the time of framing of Rule 8 in Section B, Part IV of the `Rules of the Bar Council of India relating to Standards of Legal Education and Recognition of degrees in Law for admission as advocate, Rajiv Gandhi School of Intellectual Property Law (RGSOIPL) or IIT Kharagpur was not in existence. Under these circumstances it was not possible for the Bar Council of India to consult the above institutions regarding framing of the said Rule.

Query No.2: Phrase "Qualification in Law" used in para 4 of my letter No.BCI:D:14:2008(RTI) dated 3.1.2008 necessarily means Degree in law i.e. LL.B. and LL.M. While, the Bar Council of India has power to recognize LL.B. degrees of the Universities, LL.M. degrees are out of the purview of the Bar Council of India Rules.

As regards appointment of full time Assistant Professor and Head of the School of RGSOIPL, the said institution must have laid down its own rules prescribing qualifications for such appointments. However, in the matter of appointment of law teachers, if there are conflicting rules, the rules of the Bar Council of India will prevail.

Query No.3: You may seek this information from RGSOIPL itself.

Query No.4: It may be noted that the Bar Council of India does not have any role in the matter of appointment of law teachers in the Universities or law colleges affiliated to them. Only requirement laid down by the Bar Council of India is that as far as appointment of law teachers are concerned, Rules of the Bar Council of India shall be kept in mind.

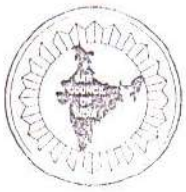
Receipt No. 5158 dated 1-5-2008 for Rs.10/- (Rupees ~~Twenty~~ Ten Only) sent by you towards application fee is sent herewith.

Yours faithfully

(S. RADHAKRISHANAN)
SECRETARY.

Encl : As above.

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New Delhi - 110 002

BCI:D: 792 /2008(LE/RTI)

11th July 2008

Shri Jadab Kumar Pal,
Qr. No.B-4/3, 1ST Floor ,
ISI Campus, 205 B.T. Road,
Kolkata-700 108.

Ref: Your letter dated 11.6.2008.

Sir,

With reference to your above mentioned letter under Right To Information Act 2005 I would like to inform you as follows:

Query No.1: I am enclosing a xerox copy of letter dated 24.1.2008 of Smt. S.K. Pal with inword entry Register number and endorsement on the same.

Query No.2: Rule 8, IN section B of the Bar Council of India in Part IV prescribes the following qualifications for law teachers:

> "Full time teachers of law including the Principal of the College shall ordinarily be holders of a Master's degree in law and where the holders of Master's degree in law are not available, persons with teaching experience for a minimum period of five years in law may be considered. Part time teaching other than one with LL.M. Degrees shall have a minimum practice of 10 years at the Bar."

However, there is no penal provision as indicated in your query.

Query No.3: I am enclosing a copy of the application submitted by RGSOIPL, IIT, Kharagpur seeking approval of affiliation of the Bar Council of India for.the five year law course.

Query No.4: RGSOIPL, IIT, Kharagpur has not submitted any Annual Returns for the years 2006-2007 and 2007-2008 to the Bar Council of India.

Query No.5: Bar Council of India has so far not relaxed Rule 8 of "Section-B" of the Bar Council of India Rules in Part IV regarding Standards of Legal Education and Recognition of Degrees in Law for admission as advocates for RGSOIPL, IIT, Kharagpur.

As regards Query No.6, it may be noted that under the Advocates' Act 1961 for enrolment as an advocate, candidate should possess LL.B. Degree of a University recognized by the Bar Council of India. It goes without saying that LL.B. degree possessed by the law teachers should be recognized by the Bar Council of India.

Query No.7: Bar Council of India does not have any authentic information about the query raised by you whether Rules of reservation for appointment in public service is applicable to RGSOIPL. This information has to be obtained from RGSOIPL, IIT, Kharagpur Copy of a letter written to RGSOIPL, IIT, Kharagpur in this regard is sent herewith.I

Query No.8: Bar Council of India has no power to relax Govt. of India Rules of reservation for appointment of teachers in RGSOIPL

Receipt No. 5531 dated 11.7.2008 for Rs.10/- (Rupees Twenty Only) sent by you towards application fee is sent herewith.

Yours faithfully

(S. RADHAKRISHANAN)
SECRETARY.

Encl : As above.

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21, Rouse Avenue Institutional Area
New Delhi - 110 002

BCI:D: 217 /2010

Date: 14.01.2010

To,

Mr. J. K. Pal,
B-4/3, 1st Floor,
205, B. T. Road,
Kolkata - 700108

Sub.: Seeking information under Right to Information Act, 05.
Ref.: Your application dated 22.12.2009 under Right to Information Act, 2005.

Sir,

I am to inform you that Bar Council of India considered the applicability of Right to Information Act, 2005 at its meeting held on 27.06.2009 and decided that Bar Council of India is not a public authority under Section 2(h) of the Right to Information Act, 2005, since, it doesn't get any grant from the Government. Therefore, reply to your question under the Right to Information Act, 2005 cannot be made available. The following resolution is reproduced below for your kind information: -

Resolution No.61/2009

RESOLVED that the Bar Council of India which is a body established by the Advocates Act, 1961 is not directly or indirectly funded either by the Central Government or the State Government. Therefore, the Bar Councils are not public authorities within the meaning of Section 2(h) of the Right to Information Act, 2005. Therefore, the request for information under the Right to Information Act, 2005 cannot be provided. While replying to letters seeking information under Right to Information Act, 2005 along with the above resolution the following be also added:

"The amount of fees sent by you is hereby refunded."

Let a copy of this resolution to be sent to all the State Bar councils and Central Information Commission for information."

Please also find herewith an IPO of Rs.10/- which is sent by you as RTI application fee.

However, I am transferring you RTI Application to Rajib Gandhi School of Intellectual Property Law (RGSOIPL) under Section 6(3) of the Right to Information Act, 2005, since the information sought by you is not available with Bar Council of India. Copy of letter written to Rajib Gandhi School of Intellectual Property Law (RGSOIPL) is enclosed herewith

Thanking you

Yours faithfully

(M. D. Joshi)
Acting Secretary

Encl.: As above

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21, Rouse Avenue Institutional Area
New Delhi - 110 002

BCI:D: 216 /2010

Date: 14.01.2010

To,

Rajib Gandhi School of
Intellectual Property Law (RGSOIPL),
IIT Kharagpur.

Sir,

I am sending herewith a copy of application dated 22.12.2009 received from Mr. J. K. Pal seeking information under Right to Information Act, 2005. It is being transferred under Section 6 (3) of the Right to Information Act, 2005 since it relates to you. Please look into the matter and supply the information to the applicant at the earliest but not later than the stipulated period under intimation to this Council.

Thanking you,

Yours faithfully,

M. D. Joshi
Acting Secretary

Encl.: As above

Copy to:-

Mr. J. K. Pal,
B-4/3, 1st Floor,
205, B. T. Road,
Kolkata – 700108